

JUNE 1, 2026
Dept. 9
Probate Tentative Rulings

14.	PP20070095	TRUST 6 UNDER THE ROLLAND & ADELE WATT TRUST
PETITION FOR ORDER TERMINATING IRREVOCABLE TRUST		

All beneficiaries of the Trust 6 under the Rolland and Adelle Watt Trust(Trust) petition the court to terminate the trust early and distribute the remaining assets per the terms of the trust directives at termination.

Probate Code § 15403 provides that "if all beneficiaries of an irrevocable trust consent, they may petition the court for modification or termination of the trust. .. " That statute limits the court's discretion only if "the continuance of the trust is necessary to carry out a material purpose of the trust."

The term "beneficiary" for beneficiary consent purposes is broadly defined in Probate Code § 24 as "a person who has any present or future interest, vested or contingent" and therefore includes even unborn, unascertained beneficiaries. However, Probate Code § 15403 goes on to state that "[i]f the trust provides for the disposition of principal to a class of persons described only as 'heirs' or 'next of kin' of the settlor, or using other words that describe the class of all persons who would take under the rules of intestacy, the court may limit he class of beneficiaries whose consent is necessary to modify or terminate a trust to the beneficiaries who are reasonably likely to take under the circumstances." The court agrees The identified beneficiaries are the likely class of beneficiaries and limits the required consent to those individuals.

Proof of service of the petition was filed on April 3, 2026. The court intends to grant the petition as requested and terminate the trusts early.

TENTATIVE RULING #14:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT’S WEBSITE.